		partnership accounting and dissolution, or in an action for partition of partnership property, where the rights of unsecured creditors of the partnership will not be prejudiced." (CCP § 872.730.) A partition action may be raised against real property owned by a partnership, by interest holders in the partnership who may additionally or otherwise be able to raise an action for dissolution—as Plaintiffs have done here. As the court explained in *Logoluso*, "[W]e note that an action to dissolve a partnership is an equitable proceeding, and so is an action in partition. Both kinds of cases present similar problems as to whether jointly-owned property should be divided or sold. Because the circumstances surrounding the two kinds of action in equity are parallel, we apply the long established rules of partition to the property division aspects of a partnership dissolution action. Equity, by its very nature, requires that like principles be applied to like cases." (*Logoluso v. Logoluso* (1965) 233 Cal.App.2d 523, 530.) Finally, Moving Defendants argue that a partnership dissolution complaint that admits the Plaintiffs do not know all the partner names (as exists here) is defective on its face. Per Plaintiffs' Complaint Paragraph 68 (verified, and not stated on information and belief), for the CDR Partnership: (1) Plaintiffs are alleged to collectively hold a 27.5% ownership interest; (2) of the Defendants, JJT Properties is alleged to hold a 27.5% ownership interest, and Aurora Heights is alleged to hold a 40% ownership interest (or 67.5% between them collectively); and (3) the individuals Luann Coleman, Carol Meng, Robert Botkin (sued erroneously as "Boltkin"), and Suzanne Shook are alleged to each hold a 1.25% interest respectively (or 5% between them collectively). The Court accepts this as true for purposes of Demurrer. Thus, the Demurrer is overruled. Moving Defendants are ordered to serve notice.
7.	2025-1495388 Sirott vs. Giammichele Law, APC	The general demurrer by Defendants Tustin Law Group, APC, formerly known as Giammichele Law, APC, and Steven Andrew Giammichele (collectively, "Defendant's) to the sole cause of action for legal malpractice alleged in the First Amended Complaint ("FAC") filed by Plaintiff Adrienne Sirott ("Plaintiff"), personally and in her capacity as a personal representative of the Estate of Stanley A. Sirott, is continued.

		The parties do not dispute that Plaintiff's opposition was not properly served on Defendants. Defendants' request for a continuance is granted. No later than August 5, 2026, Plaintiff shall file a proof of service showing Plaintiff's opposition was properly served on Defendants. Defendants may serve and file a reply no later than August 11, 2026. The hearing on Defendants' demurrer is continued to September 2, 2026, at 10:00 AM in Department N18. Defendants shall give notice.
8.	2025-1528928 Handy vs. Exodus Cry, Inc.	Defendant Exodus Cry, Inc.'s demurrer to plaintiff Bridget Handy's first amended complaint ("FAC") is continued to September 9, 2026, for Defendant to serve Plaintiff by a proper method and file a sufficient proof of service. [ROA # 44.] <u>Facts</u> Plaintiff is a self-represented litigant. [*See* First Amended Complaint (ROA #38).] Defendant purportedly served its demurrer on Plaintiff by email. [*See* Demurrer POS (ROA #44).] The proof of service does not show the email address from which service was purportedly made and it is executed in Florida and sworn under penalty of perjury under the laws of Florida. <u>Discussion</u> A self-represented litigant may not be served by email unless she expressly consents. Express consent to electronic service is accomplished either by (i) serving a notice on all other parties and filing it with the court, or (ii) by "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." Code Civ. Proc. § 1010.6(c)(3); see CRC 2.251(b)(1). As far as what is in the court file, Plaintiff has not served a notice of express consent to service by email. Nor is there any record that Plaintiff registered with for electronic service through an electronic service provider. *See* CRC 2.251(b)(1)(B)(i). Otherwise, any other way to consent is an affirmative notice either served or filed. *See* CRC 2.251(b)(1)(A), (b)(1)(B)(ii).